

Central Valley Regional Water Quality Control Board

10 January 2014

James Mills, Director of Parks and Recreation
Merced Irrigation District
744 W. 20th Street
Merced, CA 95340

NOTICE OF APPLICABILITY

WATER QUALITY ORDER 97-10-DWQ, GENERAL WASTE DISCHARGE REQUIREMENTS FOR DISCHARGES TO LAND BY SMALL DOMESTIC WASTEWATER TREATMENT SYSTEMS, MERCED IRRIGATION DISTRICT, MCSWAIN RECREATION AREA WASTEWATER TREATMENT FACILITY, MARIPOSA COUNTY

The Merced Irrigation District currently discharges secondary treated effluent from the McSwain Recreation Area Wastewater Treatment Facility (WWTF) to land. Discharges from the WWTF are regulated by Waste Discharge Requirements (WDRs) Order No. 85-161. The WDRs are obsolete, inconsistent with current plans and policies of the California Regional Water Quality Control Board, Central Valley Region (Central Valley Water Board), and need to be updated.

On 23 September 2013, the Central Valley Water Board staff received an application and letter from Merced Irrigation District accepting coverage of the discharge under *Water Quality Order 97-10-DWQ, General Waste Discharge Requirements for Discharges to Land by Small Domestic Wastewater Treatment Systems* (hereafter General Order).

Based on the findings of the original WDRs, information from self-monitoring reports and facility file, and information provided in the recent application, the discharge meets the conditions of the General Order. The discharge is hereby covered under *Water Quality Order No. 97-10-DWQ, General Waste Discharge Requirements for Discharges to Land by Small Domestic Wastewater Treatment Systems*. The facility is assigned Notice of Applicability (NOA) No. 97-10-DWQ-R5130.

The following requirements contained within the General Order apply to the subject discharge:

1. All Section A Prohibitions,
2. Section B Requirement Nos. 1.a-1.d, 4, and 6.a-6.d;
3. All Section C Ground Water and Surface Water Limitations;
4. Section D Provision Nos. 1.a-1.v, 3.a-3.b, and
5. All Attachment B Standard Provisions and Reporting for Waste Discharge Requirements.

The following sections of Attachment A, Monitoring and Reporting Program (MRP) 97-10-DWQ, apply to the discharge:

1. Aerated Pond Systems Monitoring
2. Disposal Monitoring, Pond/Basin Monitoring
3. Recreation Vehicle (RV) Waste Monitoring
4. Reporting

In addition to Attachment A, Merced Irrigation District shall follow Supplemental Monitoring and Reporting Program 97-10-DWQ-R5130, which is attached hereto and made part of this NOA by reference.

LOCATION

Merced Irrigation District owns and operates the McSwain Recreation Area WWTF. The facility is in Section 2, T5S, R15E, MDB&M. The site lies within the Merced River Hydrologic Unit (537.22) of the San Joaquin Basin.

The WWTF is in the San Joaquin River Basin. The *Water Quality Control Plan for the Sacramento River and San Joaquin River Basins, Fourth Edition* (hereafter Basin Plan), designates beneficial uses, establishes water quality objectives, and contains implementation programs and policies to achieve water quality objectives for all waters of the Basin.

DESCRIPTION

The WWTF consists of a comminuter and overflow bar screen, an aeration pond, and a spray field. The design flow is 150,000 gallons per day (gpd); however the average dry weather flow is 3,000 gpd.

The natural surface water near the WWTF is McSwain Reservoir. The existing and potential beneficial uses of McSwain Reservoir are municipal and domestic supply, agricultural supply, hydropower generation, water contact recreation, non-contact water recreation, warm freshwater habitat, cold freshwater habitat, and wildlife habitat. The Basin Plan designates the beneficial uses of groundwater as municipal and domestic supply, agricultural supply, industrial service supply, and industrial process supply.

FACILITY-SPECIFIC REQUIREMENTS

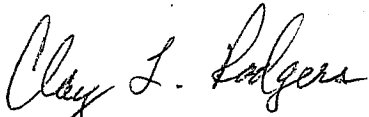
In addition to the above requirements, the Merced Irrigation District must comply with the following:

1. Discharge of wastewater at a location or in a manner different from that described above is prohibited.

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2. Public contact with wastewater from the pond shall be controlled using fences, signs, and other appropriate means. Signs shall be posted around the pond. Signs shall notify the public that the pond contains undisinfected wastewater.
3. The WWTF shall be operated in accordance with the requirements contained in the General Order.
4. The waste discharge shall not enter surface waters or surface water drainage courses.
5. The Merced Irrigation District shall submit the required annual fee (as specified in the annual billing issued by the State Water Resources Control Board), until the NOA is officially terminated.
6. Failure to abide by the conditions of the General Order and this letter authorizing applicability, including its monitoring and reporting requirements, could result in enforcement actions, as authorized by provisions of the Water Code.

If you have any questions regarding this NOA, please contact Dale Harvey at (559) 445-6190.



for Pamela C. Creedon
Executive Officer

Enclosures: Water Quality Order No. 97-10-DWQ
Supplemental Monitoring and Reporting Program No. 97-10-DWQ-R5130

CALIFORNIA REGIONAL WATER QUALITY CONTROL BOARD
CENTRAL VALLEY REGION

SUPPLEMENTAL MONITORING AND REPORTING
PROGRAM NO. 97-10-DWQ-R5130
FOR
MCSWAIN RECREATION AREA
WASTEWATER TREATMENT FACILITY
MARIPOSA COUNTY

This Supplemental Monitoring and Reporting Program (SMRP) is required pursuant to California Water Code section 13267. This SMRP is in addition to Attachment A, Monitoring and Reporting Program (MRP) No. 97-10-DWQ required under *Water Quality Order No. 97-10-DWQ, General Waste Discharge Requirements for Discharges to Land by Small Domestic Wastewater Treatment Systems* (General Order), except as modified by this SMRP. Merced Irrigation District (Hereafter, Discharger) shall not implement any changes to this SMRP unless and until the Central Valley Water Board adopts or the Executive Officer issues a revised SMRP. The sample location is described below. Changes to sample location shall be established with concurrence of Board staff.

SPRAY FIELD MONITORING

The Discharger shall inspect the spray field at least two times a month during the period that it is in use. In conducting the inspection, a log shall be kept of the spray field conditions. The log shall include notes on broken pipes, and clogged or plugged sprinkler heads. Attention shall be given to the presence or absence of the following:

- a. Breaches of berms
- b. Runoff of effluent
- c. Erosion
- d. Standing water
- e. Overspray off of the disposal site

Where the operation and maintenance manual indicates remedial action is necessary, the Discharger shall briefly explain in the transmittal what action has been taken or is scheduled to be taken. A summary of the entries made in the log during each month shall be submitted along with the quarterly monitoring reports.

REPORTING

All monitoring results, including those required by Attachment A of MRP No. 97-10-DWQ, shall be reported in **Quarterly Monitoring Reports** which are due by the first day of the second month after the calendar quarter. Therefore, monitoring reports are due as follows:

First Quarter Monitoring Report:	1 May
Second Quarter Monitoring Report:	1 August
Third Quarter Monitoring Report:	1 November
Fourth Quarter Monitoring Report:	1 February

In reporting the monitoring data, the Discharger shall arrange the data in tabular form so that the date and the observations are readily discernible. The data shall be summarized in such a manner to illustrate clearly whether the Discharger complies with requirements.

If the Discharger monitors any pollutant more frequently than is required by this Order, the results of such monitoring shall be included in the quarterly report.

Records of monitoring information shall include:

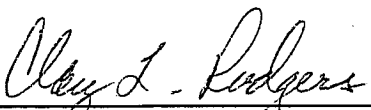
- a. The date, exact place, and time of evaluation:
- b. The individual(s) who performed the evaluation
- c. The results of analysis

The Discharger shall submit an annual report to the Board by 1 February of each year. The report shall contain both tabular and graphical summaries of the monitoring data obtained during the previous year. In addition, the Discharger shall discuss the compliance record and the corrective actions taken or planned which may be needed to bring the facility into full compliance with the general WDRs.

All reports submitted in response to this program shall comply with the signatory requirements of standard Provision B.2, under *Water Quality Order No. 97-10-DWQ, General Waste Discharge Requirements for Discharges to Land by Small Domestic Wastewater Treatment Systems* (General Order).

At any time henceforth, the State or Central Valley Regional Water Board may notify the Discharger to electronically submit monitoring reports using the State Water Board's California Integrated Water Quality System (CIWQS) program website at <http://www.waterboards.ca.gov/ciwqs/index.html>. Until such notification is given, the Discharger shall submit hard copy monitoring reports.

Ordered by:


for PAMELA C. CREEDON, Executive Officer

1/10/2014
(Date)